

Court No. - 3

Case :- WRIT - C No. - 8067 of 2022

Petitioner :- Nasiruzzaman

Respondent :- The U.P. Power Corporation And 2 Others

Counsel for Petitioner :- Nasiruzzaman

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the respondent-State and Shri N.K. Tiwari, learned counsel for the respondent no.2.

2. This writ petition has been filed praying for the following reliefs :

"a) Issue a writ, order or direction in nature of writ of certiorari quashing the impugned ex-parte inspection report dated 13.10.2020 appended as Annexure no.4, the provisional assessment order dated 10.12.2020 contained in Annexure no.4A and the demand notice dated 8.2.2021 annexed as Annexure no.2 to the writ petition.

b) Issue a writ, order or direction in nature of writ of certiorari calling for the record of FIR, if any, and to quash it."

3. Learned counsel for the respondents states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the Executive Engineer concerned within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the Executive Engineer in accordance with

law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 25.5.2022

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